

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM05
HON. Judge Ebrahim Baytieh

Date: 06/26/2026

Court Room Rules and Notices

#	Case Name	Tentative
1	<u>Boudakian - Conservatorship</u>	Petitioners Sara Cegelski and Carl Boudakian’s Motion for Order to Show Cause re: Contempt Against Mariano Alvarez, Esq. (ROA 290) is GRANTED. Petitioners ask this court to issue an order to show cause why Mariano Alvarez, Esq. (“Alvarez”) should not be held in contempt for disobedience of orders issued by this court on October 2, 2023, in related Case No. 2023-01347338 and on October 16, 2023, November 9, 2023, and November 21, 2023, in related Case No. 2023-01347330. Petitioners contend the orders prohibited Alvarez from making any changes to Charles Boudakian’s testamentary plan or other powers pending further order of the court. They contend that, in violation of those orders, Alvarez prepared changes to Charles Boudakian’s estate plan and, while the orders were in effect, gave them to Boudakian for execution. Alvarez does not deny he prepared the changes nor that he provided the documents to Charles Boudakian while the orders were in effect. He argues, however, that the orders were outside of the court’s jurisdiction and, further, that Charles Boudakian exercised his right to execute the documents on his own and did so without Alvarez’s knowledge or participation. Disobedience of any lawful judgment, order or process of the court constitutes contempt of the authority of the court. (Code Civ. Proc., §1209(a)(5).) It is further settled that “[w]hen the contempt is not committed in the immediate view and presence of the court or judge, a warrant of attachment may be issued to bring the person charged to answer, or, without a previous arrest, a warrant of commitment may, upon notice, or upon an order to show cause, be granted; and no warrant of commitment can be issued without such previous attachment to answer, or such notice or order to show cause.” (Code Civ. Proc., §1212.) The substantive issues involved in a contempt proceeding are: (1) rendition of a valid order, (2) knowledge of the order, (3) ability to comply with the order, and (4) willful disobedience. (<i>Wanke, Industrial, Commercial, Residential, Inc. v. Keck</i> (2012) 209 Cal.App.4th 1151, 1168.)